



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड

STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION

P.O:SARAIIDHELA,DHANBAD

TENDER DOCUMENT

TENDER NOTICE NO. : SAIL/CCSO/Pump Operation & Water Supply/OTE/22-23/2, Dtd. 29.08.2022

FOR

SAIL, CCSO, DHANBAD

Closing date & time of downloading/sale of tender: 12.09.2022, 4:00 PM

Last date & time of submission of tender: 13.09.2022, 3:30 PM

Tender opening date and time: 13.09.2022, 4:00 PM



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STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION
P.O:SARAIIDHELA,DHANBAD

Techno-Commerical (Part-I)

DETAIL OF TENDERER

TENDER NOTICE NO. : SAIL/CCSO/Pump Operation & Water Supply/OTE/22-23/2, Dtd. 29.08.2022

1. **Scope of Work:**

Annual Contract for Pump Operation & Water Supply in residential Quarters & Offices of CCSO regularly on daily basis.

2. **Period of Contract:**

The contract shall be for a period of 02(Two) years from the date of commencement of work as mentioned in the work order or actual date of commencement of work, whichever is earlier. The date of Commencement of work should not be more than 15 days from the date of issue of Work Order / LOA

NAME OF TENDERER : M/s. _____

ADDRESS : _____

CHECK LIST

Before submitting the tender, the tenderer is required to ensure the following instructions are complied with / documents submitted as per tender terms:

Instructions to Tenderers

☐	Each page of the Tender Document to be signed as per Clause-6 of Instructions to tenderers (techno-commercial Part-I)
☐	Duly filled in & signed Form of Tender as per Clause-8 of Instructions to tenderers (techno-commercial Part-I)
☐	Category of tenderer as per Clause-10.1 of Instructions to tenderers (techno-commercial Part-I).
☐	Tender by a partnership firm shall be signed in the firm's name by one of the partners duly authorised by other partners. Tender by Joint Stock Company to be signed in the name of the company by a person duly authorised for which a power of attorney or other proof is to be submitted (ref. Clause-10.2) of Instructions to tenderers (techno-commercial Part-I)
☐	Declaration as per Clause-10.3 of instructions to tenderers (techno-commercial Part-I)
☐	Declaration as per Clause-10.4.1 of instructions to tenderers (techno-commercial Part-I).
☐	Declaration as per Clause-10.5 of instructions to tenderers (techno-commercial Part-I)
☐	Notarised copies of Balance Sheet and Profit & Loss account for preceding three years from the date of tender as per Clause-10.6 of instructions to tenderers (techno-commercial Part-I).
☐	Details of the Bank Account (name of bank branch & account number) in the Mandate Form enclosed at Annexure-II as per Clause-10.7 of instructions to tenderers (techno-commercial Part-I).
☐	Permanent Account Number as per Clause-10.8 of instructions to tenderers (techno-commercial Part-I).
☐	GST Registration Number and copy of Certificate of GST Registration as per Clause-10.9 of instructions to tenderers (techno-commercial Part-I).
☐	PF/RPFC Registration Code Number as per Clause-10.10 of instructions to tenderers (techno-commercial Part-I).
☐	Tender to be properly bound and submitted as per Clause-26 of instructions to tenderers (techno-commercial Part-I).

Special Conditions of Contract

☐	Notarised copies of Work Order / documentary evidence, TDS certificate & Proof of satisfactory execution/completion certificate as per Clause- 4.1 of Special Conditions of Contract.
☐	Document as per Clause-4.2& 4.3 of Special Conditions of Contract , Declaration II



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STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION
P.O:SARAIIDHELA,DHANBAD

INVITATION TO TENDER

Techno-Commercial (Part-I)

TENDER NOTICE NO. : SAIL/CCSO/Pump Operation & Water Supply/OTE/22-23/2, Dtd. 29.08.2022

1. **Scope of Work:**

Annual Contract for Pump Operation & Water Supply in residential Quarters & Offices of CCSO regularly on daily basis.

2. **Period of Contract:**

The contract shall be for a period of 02 (Two) years from the date of commencement of work as mentioned in the work order or actual date of commencement of work, whichever is earlier. The date of Commencement of work should not be more than 15 days from the date of issue of Work Order / LOA

3. Tender Document with necessary details will be available for downloading from SAIL website <https://www.sailtenders.co.in>.

Tenderers who are unable to download the tender documents from the above mentioned website may collect the same from the office of GM (Coal, IT& Contract), SAIL / CCSO, CCWO Colony, Saraidhella, Dhanbad-828127 during any working days from 10.00 A.M. to 5.00 P.M.

4. The tenderer shall submit the tender in two parts consisting of Part-I (Techno-Commercial) and Part-II (Price Bids) each in separate envelope duly sealed and superscribed with respective Part No. (Part-I or Part -II). "All the two envelopes containing Part-I, Part-II shall be put in a third envelope duly sealed, superscribed with Tender Notice No., Name of the job, date of opening and addressed to GM(Coal, IT/contract), SAIL, CCSO, CCWO Colony, Saraidhella, Dhanbad-828127. Tenders not submitted with Part-I and Part-II in separate covers properly sealed as prescribed above shall be considered as invalid and rejected.

5. **The completed tenders will be received in the tender box kept at SAIL-CCSO, CCWO Colony, Saraidhella, Dhanbad-828127 on or before 13.09.2022,3.30 P.M. and opened at 4.00 P.M. on the same day in presence of the tenderers or their authorized representatives as may be present.**

6. The Company reserves the right to accept or reject any or all tenders without assigning any reason whatsoever.

General Manager(Coal, IT/Contract)
SAIL , CCSO, Dhanbad

FORM OF AGREEMENT(on a non-judicial stamp paper of Rs 100/-)

A G R E E M E N T Number:

This agreement made this day of between the Steel Authority of India Ltd., (A Company Registered under the Companies Act having its Registered Office at IspatBhawan, Lodi Road, New Delhi - 110003) having one of its units at SAIL,CCSO, CCWO Colony, Saraidhela, Dhanbad-828127 (herein after called the Employer) which expression unless repugnant to the context shall include it's successors, legal representative & administrators on one part and M/s..... (hereinafter called Contractor) which expression unless repugnant to the context includes its heirs, successor and permitted assigns on the other part.

Whereas the employer desires that certain works should be executed and completed i.e. "Sweeping & Cleaning of CCSO Office premises and SAIL House , Laboratory , Contract Cell Office , toilet cleaning of offices twice daily morning and evening and quarters (Twice in a week), removing of main holes Jam, cleaning of septic tanks and drains cleaning along with disposal , Stitching of File , hedges and grasses cutting and disposal and various others miscellaneous works of same nature etc of CCSO offices and quarters as well as the disposal from dustbins of CCSO township areas and offices premises to the outside of CCWO colony premises by Tractor tailor including loading / unloading of the same covering an approx.. Distance of 1 to 2 KM .as described in details in Special Conditions of Contract."

The aforesaid work is to be executed in a period of 02(Two) years from the Date of issue of work order/actual commencement of work (i.e. from / /). The employer has floated a Tender Notice No., and has accepted the tender submitted by the Contractor for such works.

NOW THIS AGREEMENT WITNESSES AS FOLLOWS:

1. In this agreement words and expressions shall have the same meanings as are respectively assigned to them in the Terms and Conditions of the Contract hereinafter referred to:
2. The following documents shall be deemed to form and be read and construed as part of the agreement viz:
 - a. i) Tender Notice No.
 - ii) Invitation to Tender.
 - iii) Instructions to Tenderers.
 - iv) Special Conditions of Contract (SCC)
 - v) General Conditions of Contract (GCC)
 - vi) Techno-Commercial Part of the tender
 - vii) The filled in tender documents submitted by the contractor
 - b. Price Bid including accepted rates and the amounts.
 - c. Employers Letter of Acceptance No.
 - d. Employers Work Order No.
 - e. Contractor's acknowledgement for LOA & Work Order.
 - f. Amendment to the Contract, if any.

These documents shall supplement each other and be read together. However, in case of any conflict between the provisions of GCC and SCC, the latter shall prevail.

3. In consideration of the payments to be made by the employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the employer to execute, complete and maintain the works in conformity with the provisions of the contract in all respect for two years w.e.f. _____ (date of commencement).
4. The employer hereby covenants to pay to the Contractor in consideration of the execution of the works, the contract price at the time and in the manner prescribed in the contract.

In witness where of, the parties have hereinto set their respective hands and seals the day, month and year first above written through their authorized representatives.

For and on behalf of: -

M/s.

Signature of the Contractor

For and on behalf of :-

STEEL AUTHORITY OF INDIA LIMITED
Central coal supply Organisation
Dhanbad-828127

Dated :

In capacity of :

Signature :

Designation :

Place

In the presence of: -

Witness:

1.

Name

Date

Address

2.

Name

Date

Address

Witness:

1.

Name

Date

Address

2.

Name

Date

Address



TECHNO-COMMERCIAL (PART-I)

INSTRUCTIONS TO TENDERERS

TENDER NOTICE NO. : SAIL/CCSO/Pump Operation & Water Supply/OTE/22-23/2, Dtd. 29.08.2022

1. The tenderer shall submit the tender in two parts consisting of Part -I (Techno-Commercial) and Part-II (Price Bid) each in separate envelope duly sealed and super scribed with the respective Part No. (Part-I or Part-II) .All two envelopes containing Part-I, Part-II shall be put in a third envelope duly sealed, super scribed with Tender Notice No., Name of the job, date of opening and addressed to GM Coal, IT& Contract), SAIL/CCSO, Dhanbad. Tenders not submitted with Part-I and Part-II in separate covers properly sealed as prescribed above shall be considered as invalid and rejected.
2. **Duly filled in tenders are to be deposited in the Tender Box kept at SAIL, CCSO, CCWO Colony, Saraidhela, Dhanbad on or before 13.09.2022, 3:30 PM.**The tender can be sent by Post or courier, but delayed delivery of tenders will not be entertained.
3. **The main sealed envelope containing all the sealed envelopes (Part-I, Part-II) will be opened on 13.09.2022, 4:00 PM, in the presence of the Tenderers or their authorised representatives** who wish to be present.
4. The price bids of the techno-commercially qualified tenderers, after completion of scrutiny of the “Techno-Commercial” part, will be opened at a later date in presence of the Tenderers or their authorised representatives, who wish to be present. The date of opening of the price bid (Part-II) will be intimated to all the qualified tenderers in advance.
5. The tender shall be valid for six months (180 days) for acceptance from the date of opening of tender / bid submission date and in case of extension in bid submission date, validity of offers will be counted from the extended date.
6. The tenderer shall sign each and every page of the tender documents and submit in the appropriate part of the bid.
7. Tenders not received in the prescribed forms as specified in the Invitation to Tender/Documents will be liable for rejection.
8. The Tenderer(s) shall duly fill in the “Form of Tender” enclosed as Annexure-1 in the tender documents and submit along with Techno-Commercial Bid (Part I) of the Tender. **Non-submission of duly filled in & signed form of tender shall make the tender liable for rejection.**
9. The Invitation to Tender, Instructions to Tenderers, Special Conditions of Contract & General Conditions of Contract, Form of Tender and Form of Agreement along with the rates quoted against each item in the “Schedule of work/ Rate format” together with the Letter of Acceptance and Work Order for awarding of the work and Contractor’s Letter of Acceptance shall form the contract. In case of any conflict between the terms

mentioned in General Conditions of Contract and Special Conditions of Contract, the latter shall prevail.

10. The tenderers shall also furnish the following documents/ details:
 - 10.1 Category of tenderer, whether Proprietary firm, Registered firm, Registered Partnership firm, Private Limited Company, Public Limited company, Co-operative society etc. along with following documents :
 - i) In case of Proprietary firm, affidavit of Sole Proprietary.
 - ii) In case of Partnership firm, attested copy of Partnership deed along with amendment if any and proof of registration if any.
 - iii) In case of Limited Companies, Memorandum & Articles of Association, Certificate of Incorporation, authorised, subscribed and paid up capital.
 - iv) In case of Co-operative society, attested copy of the certificate of registration from the Registrar of Co-operative societies.
 - 10.2 Each page of the tender shall be signed by the tenderer. Tender by a partnership firm shall be signed in the firm's name by one of the partners duly authorised by other partners. Tender by Joint Stock Company shall be signed in the name of the company, by a person duly authorised on its behalf. A power of attorney or other satisfactory proof showing that the person signing the tender document on behalf of the company, is duly authorised to do so, shall accompany the tender. Tender submitted by the Tenderer without furnishing the full particulars and/or documents as asked in tender documents or furnishing particulars or submitting tender documents without strictly adhering to the directions given herein shall be rejected.
 - 10.3 Information about officer of the firm/company being an employee, past or present, of SAIL/CCSO or relationship of any employee of SAIL/CCSO with Proprietor, Partner - Director of the Firm is to be furnished.
 - 10.4.1 Whether the tenderer or any of the Proprietor, Partner, Director, Shareholders or their spouse working as contractor in SAIL or any Government Department/Public Undertaking has been:
 - a. Black listed.
 - b. Removed from the approved list of Contractors.
 - c. Demoted to lower class of job.
 - d. Under Orders for banning or suspending business with him/them.If yes, give the details indicating the period.
 - 10.4.2 Banning of Business dealings:
 - a) If it is found during processing of the Tender, that the Tenderer or his representative has resorted to corrupt, fraudulent practices including misrepresentation of facts and/or fudging/forging/tampering of documents, the bid submitted by the Tenderer shall be disqualified and a ban on any further business dealings shall be imposed for a specified period under the laid down procedure of the Company.
 - b) If it is found during the validity of the Contract that the Contractor or his agent/representative or any other person claiming interest under him, indulges in any malpractice/activity prejudicial in the interest of the Plant/Unit or detrimental to the Plant/Unit, equipment and property, the said Contract may be terminated at once and a ban on any further business dealings shall be imposed for a specified period under the laid down procedure of the Company.
 - 10.4.3 Contractor's Background:

Persons convicted for any criminal offence involving moral turpitude/economic offences (other than freedom struggle) would not be eligible for allotment of Contract and if such a person is allotted the Contract by suppression of information, it will be cancelled.

- 10.5 Whether already registered with SAIL or any other Govt. Department/Public Undertaking? If yes, furnish the following information and submit the documentary evidence:

Sl. No.	Name of the organization registered with	Category of work	Qualified to tender uptoRs.	Date of Registration	Validity of Registration

- 10.6 Copy of Balance Sheet and Profit & Loss Account (duly attested by a Notary) for the year, 2018-19, 2019-20, 2020-21

- 10.7 Details of the Bank Account indicating the name of bank branch & account number to which payment is to be made in the Mandate Form enclosed at **Annexure-I**.

- 10.8Permanent Account Number.

- 10.9 GST Registration Number and Certificate of GST Registration.

- 10.10 PF/RPFC Registration Code Number.

- 11.0The tenderer shall quote for the entire tendered quantity as per scope of work.

12. The tenderer shall inspect and examine the working site, condition and their surroundings as applicable and shall satisfy himself before submitting his tender as to the nature of work, the form and the nature of the working site and materials, equipment and labour necessary for carrying out the work and in general shall himself obtain all necessary information as to risk, contingencies and other circumstances which may influence or effect his tender. No complaints on these accounts shall be entertained after submission of the tender.

13. **Price Bid** : The tenderer(s) shall submit the price bid (Part-II) as per the format given herein as “Schedule of Work/Rate format” .

14. Tenders containing overwriting or erasing, without authentication with full signature on the page(s) of : “Schedule of Work/ Rate format” (Price Bid) and amount/ quantity not shown in figures and words will be liable for rejection.

15. The rates quoted in the Schedule of Rates (Price Bid) by the tenderer shall be in figure as well as in words. In case of discrepancy in the rate/ amount between figure and words, the value written in words shall be taken as finally quoted rate/ amount.

16. Tender(s) with rates in units different from those prescribed in “Schedule of Work” will be liable for rejection. Tenders not received in the prescribed format of “Schedule of Work” specified herein shall be liable for rejection.

17. The rates in the tender shall cover all statutory duties/ taxes/ levies, as on date of tender, except GST.

18. Conditional tenders either in Part-I or Part-II of the tender shall be liable to be rejected. Tenderer must go through all the terms and conditions provided in the set of tender document and submit bonafide offer.
19. Any request from the tenderer in respect of additions, alterations, modifications, corrections etc. of either terms and condition or rates of his tenders after opening of the tenders, shall not be entertained under any circumstances. If the tenderer withdraws his tender after opening of the tender, but before the expiry of the validity period of the tender, the Earnest Money shall be forfeited.
20. The successful tenderer shall make his own arrangement for all materials and machines with tools & tackles required for carrying out the job as specified, if any, in the contract and consider the cost, labour cost & other charges to be incurred in proper execution of work within specified time.
21. By submitting a tender for the work, the tenderer will be deemed to have satisfied himself that the rates quoted by him in the tender will be adequate to complete such work according to the specifications and conditions attached hereto and he has taken into account all conditions and difficulties that may be encountered during its progress/ execution. Any complaint in this regard after submission of offer shall not be entertained.
22. Acceptance of the tender will be intimated to the successful tenderer by a Letter of Acceptance (LOA) to be followed by issue of Work Order subject to the tenderer depositing the required Initial Security Deposit (ISD). The contractor shall then be required to execute an agreement after deposit of ISD within the time specified in the Letter of Acceptance / Work order. In the event of failure on part of the contractor to sign the Agreement within the specified time, no payments shall be made till signing of agreement.
23. The date of commencement of the contract shall be as stipulated in the Work Order or actual date of starting the job whichever is earlier.
24. Canvassing in any form is strictly prohibited and tenders submitted by the tenderer who resort to canvassing, will be liable for rejection.
25. The company reserves the right to accept / reject any or all tenders without assigning any reason thereof.
26. Tender shall be properly bound and submitted.
27. Tender documents are not transferable.
28. Proprietary firm, Registered firm, Registered Partnership firm, Private Limited Company, Public Limited company, Co-operative society etc. formed after date of tender are not eligible for participating in the tender.

- 29 It shall be the responsibility of the persons submitting the tender to ensure that the tenders have been submitted in the formats and as per the terms and conditions prescribed in the SAIL Website and no change is made therein before submission of their tender. In the event of any doubt regarding the terms and conditions/ formats, the person concerned may seek clarifications from the authorised officer of SAIL. In case any tampering/unauthorised alteration is noticed in the tender submitted from the Tender Document available on the SAIL Website, the said tender shall be summarily rejected and the company shall have no liability whatsoever on the matter.
- 30 Before submitting the tender, the tenderer should ensure that the details /documents submitted as per the Check List at Page-3.

General Manager (Coal, IT/Contract)
SAIL/CCSO/Dhanbad

Date:

Place - Dhanbad



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION
P.O:SARAIHELHA,DHANBAD

TECHNO – COMMERCIAL (PART-I)

FORM OF TENDER

(Tenderers are required to fill up all the blank spaces in this tender form)

To
The .General Manager (Coal, IT/Contract)
SAIL, CCSO, CCWO Colony,
Saraidhela, Dhanbad-828127

TENDER NOTICE NO.: SAIL/CCSO/ Pump Operation & Water SupplyOTE/2022-23/2Date
:29.08.2022

1. **Scope of Work:**

Annual Contract for Pump Operation & Water Supply in residential Quarters & Offices of CCSO regularly on daily basis.

2. **Period of Contract:**

The contract shall be for a period of 02 (Two) years from the date of commencement of work as mentioned in the work order or actual date of commencement of work, whichever is earlier. The date of Commencement of work should not be more than 15 days from the date date of issue of Work Order / LOA

NAME OF TENDERER : M/s. _____

ADDRESS : _____

Sir,

1. I/We having examined the Tender documents for your Tender Notice No..... dated for the above named work. I/We, the undersigned offer to execute whole of the said work in conformity with the said tender documents containing the Invitation to Tender, Instructions to Tenderers, Special & General Conditions of Contract, including Scope of work, Techno - Commercial Part(Part-I) and Price Bid(Part-II) at the rates stated therein.
2. I/We, undertake, if our tender is accepted to commence the work from the date as mentioned in the Work Order and complete the whole of the work within 2 (two) years from the date of commencement. I/We also agree that the contract shall be signed within the period as mentioned in the Letter of Acceptance.
4. I/We agree to abide by this Tender for the period of 180 days from the date of opening of the tender and it shall remain binding on me/us and may be accepted by you at any time before the expiry of the period. I/We also agree that I/we shall not withdraw the tender during the aforesaid validity period of 180 (one hundred eighty) days. However, if I / we withdraw it or vary the tender without the written permission of GM(Coal, IT/Contract), SAIL, CCSO, Dhanbad, he shall have the right to forfeit the earnest money deposit.
5. Should this tender be accepted by you, I / we hereby agree to abide by and fulfill all terms & conditions of contract and in default thereof to pay SAIL, CCSO, Dhanbad or their successor or their authorized nominees such sum of money as are stipulated in the terms and conditions contained in the contract.
6. SAIL, CCSO,Dhanbad has the right to reject all tenders, in part or in full without assigning any reason whatsoever.
7. Till a formal agreement is prepared and executed, this tender along with other documents as stipulated in Clause - 9 of Instructions to Tenderers together with your written acceptance thereof shall constitute a binding contract between us.

Dated this _____ day of _____

TENDERER

Signature:-----

Name:-----

Date:-----

In the capacity of _____

Duly authorised to sign tender form and

On behalf of.-----

WITNESSES:

Signature:_____

Name:_____

Date:_____

Address:_____

Occupation:

(ALL IN BLOCK LETTER)

STEEL AUTHORITY OF INDIA LIMITED
CENTRAL COAL SUPPLY ORGANIZATION
CCWO COLONY, SARAIDHELA, DHANBAD-828127
(Regd. Office: IspatBhawan, Lodi Road, New Delhi-110003)

TECHNO – COMMERCIAL (PART –I)

SPECIAL CONDITIONS OF CONTRACT

TENDER NOTICE NO. : SAIL/CCSO/Pump Operation & Water Supply/OTE/22-23/2, Dtd. 29.08.2022

1. Scope of Work:

Annual Contract for Pump Operation & Water Supply in residential Quarters & Offices of CCSO regularly on daily basis.

2. PERIOD OF CONTRACT:

The contract shall be for a period of 02(Two) years from the date of commencement of work as mentioned in the work order or actual date of commencement of work, whichever is earlier. The date of Commencement of work should not be more than 15 days from the date of issue of Work Order / LOA

2.1 COMPLETION TIME:

The contractor shall start work immediately after award of Letter of Acceptance/Work Order. The work shall be completed in all respects during the contract period from the date of Letter of Acceptance/ commencement of work at site.

Company shall have the right to take possession of or use any completed or partially completed part of work at any time. Such possession or use shall not be deemed to be completion and acceptance of any work not done in accordance with terms of the Contract.

3.0 The order is to be placed on single party.

4.0 ELIGIBILITY CRITERIA:

The eligibility criteria of the tenderers for qualifying in the techno-commercial bid are as stated below (information as desired, if not furnished, **will liable the tender for rejection**):-

- 4.1 The tenderer should have experience in identical jobs to the tune of at least cumulative value of **Rs. 2.5 lakhs** (Rupees two and half lakhs only) in **two consecutive year** in last **5 years from FY 2017-18**

In support of successful execution of the above mentioned work(s), the tenderer should submit the documentary proof i.e. Copy of Work Order/Documentary evidence, Job completion certificate issued by the employer for the relevant job(s) and relevant period and corresponding TDS certificate in Form-16A or 26AS along with the tender.

4.2 PF registration at EPFO Office.

4.3 The work experience should be from Govt. organization, PSU or Public Ltd Co .In case work completion cert. is not issued, then to submit copy of RA (Running A/c) bills paid evidencing the value of completed portion of work.

[All the supporting documents as stated above shall have to be duly sealed and attested. If called for, originals are to be shown by the tenderer to the Company in due course.]

5.0 **CONTRACT PRICE:**

The tenderer(s) shall quote rate applicable in all items/works as detailed in the complete Scope of Work/schedule of work/ Rate format / Price Bid Format considering wages & other facilities / allowances mentioned in the tender terms. The tenderer(s) quoting for part of the job shall be rejected.

The rates quoted in the offer shall be firm during the contract period except for any statutory modifications related to minimum wages and other benefits, which shall be reimbursed on actuals subject to proof of documentary evidence for payments made/deposited.

6.0 **STANDARD OF WORK:**

All materials and workmanship shall be of best quality available and shall be in accordance with the specification and with prior approval of the Executing Officer or his authorised representative.

7.0 **LOCAL CONDITIONS:**

i] The tenderer should, before filling up his tender familiarise himself about the local conditions of the area and also about past practices. Once the tenderer has submitted his tender, it is deemed that he has fully familiarised himself about the conditions and no complaint will be entertained in this regard, after submission of the tender.

8.0 **STATUTORY OBLIGATIONS:**

- i) In the event of failing to discharge obligations required to be complied by the contractor by or under any statute, the SAIL, CCSO, Dhanbad management shall be entitled to rescind the contract at the sole risk and cost of the contractor and/or recover from him the amount of loss sustained on this account.
- ii) The Contractor shall maintain the records and registers in respect of workers employed by him as required under various statutes from time to time and shall produce the same for verification on demand from the statutory authorities concerned and the authorised representative of the management of SAIL/CCSO, Dhanbad

9. **INDEMNITY:**

The Contractor shall assume the liabilities for the company SAIL/ CCSO, Dhanbad against all cases, suits, claims, costs, damages, charges and expenses, arising out of or in connection with carrying out of work to which this contract relates where such cases/suits or claims are brought by the members of the public, neighbouring owners or workman employed by the contractor for the work or by the workmen's representative(s).

10.0 **DECISIONS/AWARDS:**

The contractor shall abide by the notifications/ decisions/ recommendations /awards by the Courts/Labour courts/Industrial tribunal/ Commission appointed by the appropriate Government in respect of the industry and shall secure implementation of the provision of the decisions /awards / recommendations from time to time and maintain such relevant records and registers as are required to be maintained under these legislations /award / decisions and produce the same before the concerned statutory authorities and before the authorised representative of the Company as and when required.

11.0 WAGES& OTHER FACILITIES / ALLOWANCES:

11.1 The contractor shall ensure payment of the minimum wages for Highly Skilled, Skilled, Semi-skilled, & Un Skilled worker as per Central Govt. as amended and circulated from time to time, in presence of the representative of the Principal Employer. The Contractor shall also ensure to pay additional Rs. 88.46 per day as a AWA to each employee .

11.2The contractor shall offer payment of all statutory dues payable to his workers in presence of the representative of the Principal Employer, within a week of expiry of the contract.

11.3The contractor shall be fully responsible to comply with all his statutory obligations as employer including all contributions under PF and Pension Scheme(EPF) etc., under the Employees Provident Fund and Misc. Provision Act., 1952, Employee Deposit Linked Insurance (EDLI), Employee State Insurance Act., 1948, and all other such obligations/liabilities [like bonus- 8.33% of wage, ESI 4.75% of wage, PF, in respect of their labour engaged by them for the job undertaken under the contract as per all applicable statutory provisions/Law and all other Government Notifications and will take full liabilities on these accounts. The company will not take any financial liability on these accounts. In the event of failure of the contractor to comply with the above, the company shall be entitled to recover from the bills and finally from the security deposit of the contractor the amount as may be statutorily payable but not paid. In the event the amount is recovered from security deposit, the amount shall be immediately deposited by the contractor to put security deposit to it's original position.

11.4Evaluation of L1 price will be done based on overall quoted rate in all items as per price bid Format.

11.5 Escalation/De-escalation Clause:-

- i. Any statutory increase and decrease in minimum wages, bonus rates, employee superannuation benefits, any special allowance notified by the concerned Authority or newly introduced statutory employee benefits notified by concerned authority after the date of issue of Tender shall be reimbursed to/recovered from the Contractor based on the actual deployment of workmen. Necessary documents in support of payment or recovery of differential employee wages / benefits by the Contractor to the workmen duly certified by the Welfare Officer are required to be submitted by the Contractor along with the Escalation / De-escalation bills.
- ii. Any increase and decrease in statutory levy / taxes / duties or newly introduced statutory levy / taxes / duties notified by the concerned Authority after the date of issue offender shall be paid to/recovered from the Contractor which are applicable on the Schedule of Rates indicated in the Work Order. Necessary documents in support of the same are required to be submitted by the Contractor along with the bills.

- iii. No other escalation shall be admissible during the validity period of the contract.
- iv. No escalation shall be admissible beyond the normal validity period of contract if extension of contract has been allowed with imposition of LD.

12.0 PAYMENT OF OTHER TAXES:-

12.1 The contractor shall pay all taxes, which may be levied and no compensation on this account shall be made to him, except GST.

The rates quoted in percentage shall be inclusive of all leviable statutory expenses, but exclusive of GST as applicable and required under GST laws so as to enable availing ITC (input tax credit) by SAIL/CCSO.

12.2 TAXES AND DUTY CLAUSE FOR CONTRACTOR AND TDS FOR INCOME TAX:

Tax deduction at source (TDS) shall be made towards income tax from all the bills of the contractor at applicable rates as per Income Tax Act and Rules.

12.2.1 Statutory compliance required for GST Law as enacted during the currency of the subjected Contract/ Agreement.

- i. For the purposes of levy and imposition of GST, the expressions shall have the following meanings:
 - a. GST - means any tax imposed on the supply of goods and/or services under GST Law.
 - b. Cess – means any applicable cess, existing or future on the supply of Goods and Services as per Goods and Services Tax (Compensation to States) Act, 2017.
 - c. GST Law - means IGST Act, 2017, CGST Act, 2017, UTGST Act, 2017 and SGST Act, 2017 and all related ancillary Rules and Notifications issued in this regard from time to time.
- ii. The rates quoted by the Vendor/Supplier/Contractor shall be inclusive of all taxes, duties, levies and Cess except GST. Vendor/Supplier/Contractor has to clearly show the amount of GST separately in the Tax Invoices raised by them. Further, it is the responsibility of the Vendor/Supplier/Contractor to make all possible efforts to make their accounting and IT system GST compliant in order to ensure timely availability of Input Tax Credit (ITC) to SAIL/ CCSO, Dhanbad.
- iii. Evaluation of L-1 prices shall be done based on rate quoted in percentage which shall be inclusive of all leviable statutory expenses, but exclusive of GST as applicable and required under GST laws so as to enable availing ITC (input tax credit) by SAIL/CCSO. SAIL/CCSO shall evaluate the offers on the basis of the quoted rates only and any claim subsequently by the Vendor/Supplier/Contractor for additional payment/liability shall not be admitted and has to be borne by the Vendor/Supplier/Contractor.
- iv. In case the Vendor/Supplier/Contractor is covered under Composition Scheme under the GST law, then the Vendor/Supplier/Contractor should quote the price inclusive of GST. Further, such Vendor/Supplier/Contractor should mention “Cover under

composition system” in column for GST of the price schedule. The Vendor/Supplier/Contractor should also carefully understand the implication of Input Tax Credit (ITC) before quoting the rates.

- v. For the purpose of this contract, it is agreed between the parties that if any new taxes, duties or levies other than GST is introduced subsequent to the final date of submission of tender or reverse auction by the Central/State Government & Local Authorities and such new taxes, duties or levies become payable, then an equitable adjustment on account of new taxes, duties or levies in the contracted price shall be made which shall be subject to the production of documentary evidence by the Vendor/ Supplier/ Contractor. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows :
 - a. If input tax credit (ITC) is available, the adjustment in contract price for such new tax shall be made.
 - b. In other cases (i.e. where tax credit is not available), adjustment in contract price shall be made only if the new tax is enacted during the period of extension arising out of reasons attributable to SAIL/CCSO.
- vi. In case of variation (increase/decrease) in the rate of GST after the final date of submission of tender or reverse auction, the said revised rate shall be reimbursed or recovered on production of relevant statutory documentary evidence. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows :
 - a. If input tax credit (ITC) is available, the said revised rate shall be reimbursed or recovered.
 - b. In other cases (i.e. where input tax credit is not available), the said revised rate shall be reimbursed only if the reasons for extension of the contract is attributable to SAIL/CCSO. In any case, recovery shall be made in case of a downward variation in the rate of tax.
- vii. Vendor/Supplier/Contractor agrees to do all things not limited to providing GST compliant Tax Invoices or other documentation as per GST law relating to the supply of goods and/or services covered in the instant contract like raising of and/or acceptance or rejection of credit notes/debit notes as the case may be, payment of taxes, timely filing of valid statutory Returns for the tax period on the Goods and Service Tax Network (GSTN), submission of general information as and when called for by SAIL/CCSO in the customized format shared by SAIL/CCSO in order to enable SAIL/CCSO to update its database, etc. that may be necessary to match the invoices on GSTN common portal and enable SAIL/CCSO to claim input tax credit in relation to any GST payable under this Contract or in respect of any supply under this Contract.
- viii. In case Input Tax Credit of GST is denied or demand is made on SAIL/CCSO by the Central/State Authorities on account of any non-compliance by Vendor/Supplier/Contractor, including non-payment of GST charged and recovered, the Vendor/Supplier/Contractor shall indemnify SAIL/CCSO in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance. SAIL/CCSO, at its discretion, may also withhold/recover such disputed amount from the pending payments of the Vendor/Supplier/Contractor and /or also from any sum payable to the contractor by any other SAIL Plant or Unit.

- ix. Vendor/Supplier/Contractor shall maintain high GST compliance rating track record at any given point of time.
- x. Vendor/Supplier/Contractor shall avail the most beneficial Notifications, abatements, exemptions etc., if any, as applicable for the supplies under the Goods and Service Tax Act.

13.0 PAYMENT TERMS:

- 13.1 Part payment will be made after satisfactory completion of actual work as instructed. 2.5% of each bill amount(progressive bill) will be kept as security deposit which will be released after 60 days of completion of work, if any, complaint as such is not received against the executed work till date.
- 13.2 For the purpose of such monthly payments, invoices preferably in their printed forms along with the documentary proof for having deposited the contractor's permanent employees and his labourers' contribution towards PF and pension with his jurisdictional RPF Commissioner and proof of payment towards ESI along with proof of payment of wages to his workmen in presence of the authorised representative of the employer shall be prepared and submitted by the contractor for the work done during the previous month within seven days from the expiry of the previous month.
- 13.3 Payments against bills shall be released through ECS within 30 days after receipt of each running bill on submission of clear invoices and PF documents. Final bill will be paid within 60 days on completion of all formalities as per the terms and conditions of the contract.
- 13.4 Payment shall be regulated as per the rates mentioned in the "Schedule of work/ Rate format".
- 13.5 Deduction of applicable taxes will be made from the invoice and TDS certificate will be issued by Finance & Accounts Department for such deductions.
- 13.6 Regarding GST the tenderer need not to include the same while submitting the offer. GST at applicable rate shall be paid against submission of GST compliant Invoice and all the statutory compliances by the contractor as required under GST Laws for enabling purchaser/employer to avail of Input Tax Credit on payment of said GST.

14.0 PENALTY:

- i. The completion of work must be done within the instructed time frame. In case of failure, it will attract suitable penalty as deemed by the management.

Useful salvaged material, as advised by the management, is to be handed over to the management. Cleaning of premises after completion of the job, otherwise, a penalty of Rs 2000.00 will be imposed on the party in each case.

- ii Contractor should provide at least 01 un skilled worker on daily basis to execute the job as mentioned in scope of work. In case of non-compliance **penalty may be charged equivalent to cost involved for alternative arrangement of water supply to quarters & offices. .**

- 15.0 All labourers employed by contractor shall be exclusively under his direct employment and the rule of master and servant will apply as between the contractor and his employees. The Company shall not accept any liability for giving employment to the Contractor's workers at any time. The Contractor shall make this amply clear to his Workers.

16.0 The contractor shall be legally bound to fulfil all the obligations developing on the Company in the capacity of Owner/Occupier/Agent under the various Acts and Rules in force from time to time and applicable to such works as are awarded to them as per provisions made therein.

17.0 **OPERATING AUTHORITY:**

Maintenance deptt. Of SAIL/CCSO, Dhanbad or its authorised representative will be the Operating Authority for inspection and certifying the execution of jobs as per terms and conditions of the contract.

18.0 **CONTRACT AGREEMENT:**

The successful tenderer shall enter into and execute a contract agreement in the form as prescribed/as specified by the Employer within the time specified in the Letter of Acceptance and in default thereof the payment to be made to the contractor under the contract shall not be made. Cost of the stamp duty for the agreement is to be borne and paid by the successful tenderer.

19.0 The rates for jobs as mentioned in the schedule of work/rate format should be indicated both in words as well as in figure (In case of any discrepancy, amount indicated in words shall be considered).

20.0 To ensure the availability of requisite manpower (at least one Semiskilled manpower for operation of Pump & supply of water in residential quarters and offices.

21.0 **SECURITY DEPOSIT(SD):**

5% of the total work order value shall be the security deposit in this contract, in which, the Initial Security Deposit will amount to 2¹/₂ % of the total work order value. The Initial Security Deposit (ISD) is to be deposited by the Contractor within 10 (ten) days from the date of Issue of Letter of Acceptance in the form of Bank draft/Bankers Cheque from any Schedule Commercial Bank except Co-operative and Gramin Bank payable to SAIL/CCSO, Dhanbad or Online Transfer-NEFT/RTGS . The Security Deposit equivalent to the balance 2¹/₂ % of the work-value will be recovered from each of the progressive bills of the contractor. The SD deducted from the progressive bills shall be refunded after 60 days, in case any complaints as such are not reported on date. The Security Deposit shall bear no interest and refund will be as per provision. The ISD converted to SD shall be refunded after six months from the completion of final work, in case any complaints as such are not reported on date.

The company shall be at liberty to deduct and appropriate from the Security Deposit such penalties and dues as may be payable by the Contractor under the contract and the amount by which the Security Deposit shall get diminished will be made good by further deduction from the Contractor's subsequent bills in the same manner as aforesaid until the security deposit is restored to its full limit mentioned above. On due and satisfactory performance and completion of the contract in all respect and settlement of final bills, the Security Deposit will be returned to the Contractor without any interest on presentation of an absolute No Demand Certificate in the form as may be prescribed by the company. No claim shall lie against the company on any account whatsoever in respect of this contract after the receipt of No Demand Certificate from the Contractor.

The company shall have the full right to forfeit and appropriate the security deposit on breach of any of the terms and conditions laid down herein or will be applicable in future, without prejudice to the rights of the company or otherwise available under the law.

Any dues of the company against the Contractor under the contract resulting from award of work to some other agency at the risk and cost of the Contractor shall be adjustable against the security deposit and if SD is insufficient, the same could be recovered from the Contractor.

In case of the termination of the contract by the contractor, the company shall have right to forfeit the Security Deposit.

22.0 REFUND OF SECURITY DEPOSIT:

The Security Deposit shall be refunded to the Contractor within six months from the date of payment of final bill, subject to the condition that the Contractor shall produce a certificate from the Maintenance deptt./operating authority/ statutory authorities of having disbursed all labour payments, other statutory payments and cleared all his obligations under the contract.

23.0 If at any time during the course of work, the quality or progress of work found is not satisfactory, the contract will be terminated and Security Deposit against the work will be forfeited and the job will be got done by other agency at the risk, cost & responsibility of the original contractor.

24.0 Statutory taxes (i.e. Income Tax, Sales Tax etc.,) will be deducted at source as per rule.

25.0 Tenderer should visit the site of work to satisfy himself before submission of tenders.

26.0 The Contractor shall comply with all the provisions of contract labour (Regulation & Abolition) Act, 1970 and payment of Minimum Wages. The contractor has to submit labour licence within a month of placement of order under Contract Labour (Regulation and Abolition) Act, 1970 and a copy of labour licence under any previous contract, if any.

27. The final bill of the contract will be released only after furnishing clearance certificate from the executing officer of the SAIL/CCSO, Dhanbad.

28.0 Time is the essence of the contract and the contractor is required to complete the job within the stipulated period of the contract.

PERFORMANCE GUARANTEE BOND (PGB):

In case, L-1 tenderer quotes unworkable rates i.e. if the quote price is less than the lower limit of the estimated price, the tenderer will be asked to justify the quoted rate. On non-acceptance of justification given by Tenderer / refusal of submitting the justification of quoted rate, the tenderer will be asked to submit Performance Guarantee Bond (PGB) (in addition to the Security Deposit) and the same is to be submitted along with Initial Security Deposit (ISD) after issuance of LOA in prescribed format in the form of Bank Draft/ Bank Guarantee. However, tenderer has to give consent for submission of required amount of PGB on asking the same by SAIL, before his offer can be considered. The amount of Performance Guarantee Bond will be decided by SAIL/CCSO and will be communicated in due course. Earnest money of the tenderers who refuse to give Performance Guarantee Bond, as required, will be forfeited and they will not be considered in re-tendering if order/ contract is not finalized from the present tender. The performance guarantee bond should be in the form of Bank Draft / Bank Guarantee from any Scheduled Commercial Bank except Co-Operative and Gramin Bank only. In case the tenderer has any outstanding amount with the company against different tender, the same will not be adjusted for this purpose. The validity of PGB must be for three months from date of completion of work.

29.0 PAYING AUTHORITY:

The paying Authority will be General Manager (F&A), SAIL/CCSO, Dhanbad.

30.0 EVALUATION OF PRICE BIDS:

L-1 tenderer shall be determined based on overall quoted rate in all items as per price bid Format .The rate quoted in the Schedule of Work/rate format (Price Bid) by the tenderer shall be in figure as well as in words. In case of discrepancy in the rate/ amount between figure and words, the value written in words shall be taken as finally quoted rate/ amount.

31.0 FORECLOSURE OF CONTRACT:

The employer shall have the right to foreclose the contract for whatever reasons by giving one month notice on the Contractor without any claim of damages by the Contractor.

32.0 All the regulatory terms & conditions, guidelines etc. as applicable in SAIL shall be followed while processing the tender and executing the contract.

33.0 The several documents forming the contract are to be taken as mutually explanatory of one another. In case of any difference or conflict between Special Conditions of the Contract and General Conditions of Contract, for clauses appearing in both, the clause of Special Conditions of Contract shall prevail over the other.

General Manager (Coal, IT/Contract)
SAIL/CCSO/ Dhanbad



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION
P.O:SARAIIDHELA,DHANBAD

GENERAL CONDITIONS OF CONTRACT

1. **DEFINITIONS:**

In the contract (as hereinafter defined) the following words, definitions and expressions shall have the meanings hereby assigned to them. Except where the context otherwise requires.

- 1.1.1 **Approved** means approved in writing, including subsequent written confirmation of previous verbal approval, and “approval” means approval in writing including as aforesaid.
- 1.1.2 **Company** means Steel Authority of India Ltd., having its Registered Office at “Ispat Bhawan”, Lodi Road, New Delhi - 110003.
- 1.1.3 **Competent Authority** means Head of the Department of the employer and any other Executive empowered under its Delegation of Powers and also includes his nominee.
- 1.1.4 **Contract** means the Invitation to Tender, Instructions to Tenderers, General Conditions of Contract, Special Conditions of Contract, Scope of Work, tender submitted by the Tenderer, including his price offer, Performance Guarantee Bond and other Bonds, Letter of Acceptance, Work Order and the Contract and any communication having the effect of amendment of the contract, and the contract agreement.
- 1.1.5 **Contract Rate/price** means the sum named in the tender that has been accepted, subject to such additions thereto or deductions there from as may be made under the provisions of the contract.
- 1.1.6 **Contractor** means "the Tenderer" whose tender has been accepted and includes the Contractor's authorized representative, successors or permitted assignees, legal heirs.
- 1.1.7 **Director** means and include the Director holding the Charge of Raw Materials Division or the Director's designated representative, or other empowered contract awarding authority. The Director shall make all determinations of the Employer/Company with respect to the contract, except those specifically reserved to the Engineer.
- 1.1.8 **Duration of Contract** means the period stipulated in the contract or work order and includes any extended period thereof, if any made by a written communication.
- 1.1.9 **Employer** means the Raw Materials Division of Steel Authority of India Ltd., a company registered under the Indian Companies Act.,1956 & includes its legal successors and assigns. Wherever in this contract instructions / directions are to be issued by the ‘employer’, the Chief Executive of Raw Materials Division or his duly authorized representative shall issue such instructions / directions.
- 1.1.10 **Engineer** means any person appointed from time to time by the Employer and notified in Writing to the Contractor to act as Engineer for the purpose of the contract. Where Work must be "Approved", or be performed "As Directed", or "As Required" (or words of like import), the approval, direction or requirement will be made by the Engineer.

- 1.1.11 **Engineer's Representative** means any assistant of the Engineer appointed from time to time by the Engineer to perform the duties set forth in Clause-2 hereof whose authority shall be notified in writing to the Contractor by the Engineer.
- 1.1.12 **Notice in Writing** or written notice means a notice in written, typed or printed characters sent (unless delivered personally or otherwise proved to have been received) by registered post / courier (with POD) to the notified address, or the Registered Office of the addressee, or the Contractor's site office, and shall be deemed to be sufficient service if so sent or left at that address.
- 1.1.13 **Site** means the lands and other places under in or through which the works are to be executed or carried out and any other lands or places provided by the Employer for the purpose of the contract.
- 1.1.14 **Terms & Conditions** means the Special Conditions of Contract and General Conditions of Contract herein mentioned and other stipulations incorporated in any part of Tender Document and /or Draft Agreement.
- 1.1.15 **Tender** means offer against Enquiry / Advertisement submitted by Tenderer.
- 1.1.16 **Tenderer** means and includes the person or firm or Company who have submitted valid tender and also includes its authorized representatives, heirs, executors, administrators, successors and assignees as approved by the employer.
- 1.1.17 **Work** means all work as given in the Scope of Work in the Tender Document and includes any associated work required for fulfilment of the Scope of Work and as set forth and required by the specifications, drawings & schedules hereto annexed, and also such additional instructions and drawings as shall from time to time during the progress of work be supplied by the employer.
- 1.1.18 Words importing the singular only shall include the plural and vice versa. Where the context requires, words importing person only shall include firms and corporations and vice versa.
- 1.1.19 "CCSO" means Central coal supply organization a unit of SAIL under Director (RM & L) of SAIL, New Delhi.

2.0 **DUTIES OF ENGINEER'S REPRESENTATIVE:**

- 2.1 The duties of Engineer's Representative are to watch and oversee the work. He shall have no authority to relieve the Contractor of any of his duties or obligations under the contract except as expressly provided hereunder or elsewhere under the contract, nor, except as expressly provided thereunder or elsewhere in the Contract, to order any work involving delay or any extra payment by the Company nor to make any variation of or in the Works.
- 2.2 The Engineer may from time to time in writing delegate to the Engineer's Representative any of the power and authorities vested in the Engineer and shall furnish to the Contractor a copy of all such written delegation of power or authorities.
- Any written instruction or written approval given by Engineer's Representative to the Contractor within the terms of such delegation (but not otherwise) shall bind the Contractor and the Employer provided however:-

- a) Failure of the Engineer's Representative to disapprove any work or materials shall not prejudice the powers of the Engineer thereafter to disapprove such work or materials.
- b) If the Contractor is dissatisfied by any decision of the Engineer's Representative he may refer the matter to the Engineer who shall thereupon confirm, reverse or vary such decision and the same shall be final and binding on the Contractor.

3.0 **ASSIGNMENT / SUB-CONTRACTING:**

- 3.1 The Contractor shall not assign the contract, or any other part thereof, or any benefit or interest therein or thereunder, without the prior written consent of the Employer.
- 3.2 The Contractor shall not sub-contract the Works, except where otherwise provided by the contract, without the written consent of the Employer, and such consent if given shall not absolve the Contractor from responsibility, liability or obligation under the contract and he shall be responsible for the acts, defaults or neglects of any Sub-Contractor, his agents, servants or workman as fully as if they were the acts, defaults or neglects of the contractor, his agents, servants or workmen.
Provided always that the provision of labour on a piece-work basis shall not be deemed to be subletting under this clause.

4.0 **CONTRACT DOCUMENTS:**

- 4.1 **Documents mutually explanatory:** The several documents forming the contract are to be taken as mutually explanatory of one another, and interpreted harmoniously, and in case of ambiguities or discrepancies, the same shall be clarified by the employer who shall thereupon issue to the Contractor instructions/directions indicating the manner in which the work is to be carried out. However, if there is any conflict regarding any term or expression or instruction used in more than one document, the term or expression or instruction in the later document as arranged seriatim in Article: 1.1.4/1.1.17, shall take precedence and have overriding effect, and modify or replace any such term or expression occurring in an earlier document.
- 4.2 **Further Instruction:** The Engineer shall have full power and authority as delegated to him by the Employer, to issue to the Contractor, from time to time during the progress of the work, such further instructions as shall be necessary for the purpose of proper and adequate execution of the work and the Contractor(s) shall carry out and be bound by such further instructions.

5.0 **GENERAL OBLIGATION OF CONTRACTOR:**

- 5.1 **Contract Agreement:** The Contractor shall enter into and execute a contract agreement in the form as prescribed by the Employer within the time specified in the letter of acceptance and in default thereof the payment to be made to the contractor under the contract shall not be made till the agreement is signed. The cost of the stamp duty for the agreement is to be borne and paid by the Contractor.
- 5.2 **Site Conditions and Requirements of Work:** By making the Offer / submitting the Tender, it will be deemed that the Tenderer / Contractor had studied the Tender papers carefully. It will be presumed that the Contractor had inspected the site of the work to acquaint himself with the site and local conditions, means of access to the site of work, nature of work and all other matters pertaining thereto. The Contractor has thus made himself aware of the conditions and the requirements under the Contract, and the facts on the ground, before consenting to the Contract. The Company therefore,

will not accept any subsequent claim of misunderstanding or misrepresentation of essential information / fact relating to the Work or Contract.

- 5.3 **Sufficiency of tender:** The Contractor shall be deemed to have satisfied himself before submitting tender as to the correctness and sufficiency of his tender for the works and of the rates stated in the tender schedule which shall cover all his obligations under the contract and all matters and things necessary for the proper completion and maintenance of the work.
- 5.4 **Employment of Labour:** Employment of labour and fixing of their wages and other benefits will be done by the Contractor as per the provisions of the Contract Labour (R&A) Act 1970 and Rules framed thereunder. The Contractor shall also comply with all Acts and Rule framed thereunder by the appropriate Government from time to time including those governing the protection of health, sanitary arrangements, wages, welfare & safety of contract labour employed. The rules and other statutory obligations with regard to fair wages and all terminal benefits, welfare & safety measures, maternity leave and maintenance of necessary registers etc. will be deemed to be part of the Contract and shall be the sole responsibility of the Contractor. The Contractor will get himself registered with concerned statutory authority as provided in the Act and shall be directly responsible to the authorities thereunder for compliance with the provisions thereunder. The Contractor shall keep engaged such number of labourers as shall be necessary for the timely execution of the job. The Contractor shall not increase the number of workers without prior permission of the Employer. The retrenchment compensation and other benefits will be paid by the Contractor to the labourer as per the provision of the Industrial Disputes Act. The Contractor shall strictly comply with the statutory rules and regulations in respect of working hours of female labourer at site and other benefits available to such female contract labourers.
- 5.5 **Security Deposit:** To indemnify the Company against any losses or any claim that the Company might have to suffer on account of non-fulfilment of the statutory and other obligations by the Contractor and also as a security towards due and faithful performance of the contract by the Contractor, a Security Deposit equivalent to 5% of the Total work-value will be realised from the Contractor. Out of this, the Initial Security Deposit will amount to 2 ¹/₂ % of the Total -value. The Initial Security Deposit less the Earnest Money already deposited is to be deposited by the Contractor within 10 (ten) days from the date of Issue of Letter of Acceptance in the shape of Bank draft/Bankers Cheque from the branch of a Public Sector bank. The Security Deposit equivalent to the balance 2¹/₂ % of the work-value will be recovered from the progressive bills of the Contractor. The Security Deposit shall bear no interest and refund will be as per provision relating to refund of Security Deposit mentioned in General Conditions of Contract.
- 5.6 **Work to the satisfaction of Engineer:** The Contractor shall execute the work efficiently and complete it all respects in strict accordance with the contract terms and conditions and shall comply with and adhere strictly to the Engineer's instructions and directions on any matter in accordance to the terms of the Contract. The Contractor shall take instructions and directions only from the Engineer or from the Engineer's Representative subject to Clause 2.1 hereof.
- 5.7 **Contractors Superintendence:** As soon as practicable, after the acceptance of his tender, the Contractor shall if required submit to the Engineer for his approval, a programme showing the order of procedure and methods in which he proposes to

carry out the work, and shall whenever required by the Engineer furnish for his information, particulars in writing, of the Contractor's arrangements for carrying out the work and of the equipments which the Contractor intends to use for the contract. The submission to and approval by the Engineer or its authorised representative of such programme or the furnishing of such particulars shall not absolve the Contractor or any of his duties or responsibilities under the contract.

The Contractor shall provide all necessary superintendence during the execution of the works and as long thereafter as the Engineer may consider necessary for carrying out the contract. The Contractor or his competent and authorised representative as approved by the Employer in writing, which approval may, at any time, be withdrawn, shall engage himself continuously on the works and shall make available whole of his time for the superintendence of this contracted work. If such approval is withdrawn by the Employer, the Contractor shall, as soon as is practicable, having regard to the requirement of replacing him as hereinafter mentioned, after receiving written notice of such withdrawal, remove his representative from the site and shall not thereafter employ/engage him again on site in any capacity and shall replace him by another representative approved by the Employer. Such authorised representative shall receive on behalf of the Contractor instructions and direction from the Engineer or from the Engineer's representatives subject to clause 2.0.

If in the opinion of the Engineer due progress is not made with the work in accordance with the contract and / or any directions given by the Engineer are not properly complied with or attended to, the Engineer may, if he considers it necessary or proper for the due execution of work in accordance with the contract, of which his certificate in writing will be sufficient evidence, order the employment of extra supervising staff to supervise the work, and the expenses of such employment including the salary of the supervising staff shall be provided by the Contractor, provided that the Engineer shall give to the Contractor not less than 7 days previous notice in writing of his intention to exercise this power.

5.8 Contractor's Employees: The Contractor shall provide and employ at site in connection with the execution of the contracted work, Contractor's employees comprising:

- a) Only such technical assistants and other staff as are skilled and experienced in their respective callings and foremen competent to provide proper supervision to the works, and
- b) Such skilled, semi-skilled and unskilled labourer as is necessary for the proper and timely execution of the contracted works.

The aforesaid employees will be under the direct control and supervision of the contractor. The Engineer shall be at liberty to object to and require the contractor to remove from the work any person employed by the contractor for or in connection with the execution of the work whose employment is considered by the Engineer to be detrimental or undesirable and such person shall not be again employed for the work without written permission of the Engineer. Any person so removed from the work shall be replaced without delay by competent substitute.

The Contractor shall submit to the Engineer or the Engineer's Representative, returns in such forms and at such intervals as the Engineer may prescribe, from time to time showing in detail the supervisory staff, his permanent employees deployed at site and the numbers of the several classes of labourers engaged by the Contractor at site and

such other information as may be deemed necessary for the purpose of ensuring that the provisions of the contract, in so far as Contractor's employees are concerned, are being duly complied with by the Contractor.

The Contractor shall not employ labourers below the age as specified in the Act/ Regulations notified by Central Govt. and also shall not employ labourers of more than 60 years of age and shall also employ only medically fit persons.

- 5.10 **Damage to person or property:** The Contractor shall except if and so far as the contract otherwise provides, indemnify and keep indemnified the Employer against all losses and claims for injuries or damages to any person or property whatsoever which may arise out of and in the course of execution of contract, as a consequence thereof and against all claims, demand, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.
- 5.10.1 From the commencement of the work to its completion the contractor shall take full responsibility of the care of the work and of all temporary works, and in case any damage, loss or injury shall happen to the works or to any part thereof or to any temporary works from any cause whatsoever, shall at his own cost repair and make good the same so that at the completion the works shall be in good order and conditions and in conformity in every respect with the requirement of the contract and the Engineer's instructions.
- 5.10.2 Before the commencement of the contracted work, the Contractor shall, but without limiting his obligations and responsibility under clause 5.10.1 hereof, insure against any damages loss or injury which may occur to any property, including that of Employer, or to any person, including any person /employee of the Employer, by or arising out of the execution of contracted work or in carrying out the contract otherwise than due to 'excepted risks'.

Note : The 'excepted risks' mentioned above are war hostilities (whether war be declared or not), act of foreign enemies, rebellion, revolution, insurrection or military or usurped power , civil war or riot, commotion or disorder (otherwise than among contractors own employees) riot, commotion or disorder, or any such operation of the forces of nature as responsible foresight and ability on the part of the contractor could not foresee or reasonably provide against.

- 5.11 **Third Party Insurance:** The Contractor shall take third party insurance towards third party liability. The third party liability shall cover loss/disablement of human life (persons not belonging to the Contractor). Such insurance shall be effected with an insurer and in terms approved by the Employer. The value of third party liability for compensation for loss of human life or partial / full disablement shall be of required statutory value but not less than Rs. 2.0 lakhs per death, Rs. 1.5 lakhs per full disablement and Rs. 1.0 lakhs per partial disablement and shall nevertheless cover such compensation as may be awarded by a court of Law in India or abroad. The Contractor shall whenever required, produce to the Engineer the policies of insurance and the receipts for payments of the current premium. As such, the employer shall not be responsible and liable on this account and the liability shall remain entirely with the Contractor. Further the contractor shall continue to be bound by the provisions of the Employees Compensation Act and other statutes relating to this, as may be applicable, and the above insurance shall in no manner whatsoever dilute his statutory responsibilities and obligations.

- 5.12 **Accident or Injury to Workmen:** The Employer shall not be liable for or in respect of any damages or compensation payable as per law in respect of and in consequences of any accident or injury to any workmen or any other person in the employment of the Contractor, save and except for accident or injury resulting from any act or default of the Employer, his representative or servant. The Contractor shall indemnify and keep indemnified the Employer against all such damages and compensation (save and except as aforesaid) as against all claims demands, proceedings, costs, charges and expenses whatsoever in respect or in relation thereto.
- 5.13 **Employees Compensation:** The Contractor shall at all times indemnify the Employer against all claims for compensation under the provision of the Employees Compensation Act, 1923 or any other law for the time being in force by, or in respect of any workmen employed by the Contractor or any Sub-Contractor in carrying out the contract and against all costs and expenses for penalties incurred by the Employer in connection therewith and, without prejudice to any other means of recovery, the Employer shall be entitled, to deduct from any money due or become due to the Contractor (whether under this contract or any other contract) all money paid or payable by way of compensation aforesaid or for costs or expenses in connection with any claims thereto and the Contractor shall abide by the decision of the Employer as to the sum payable by Contractor under the provisions of this Clause.
- 5.14 **Notice & Payments of fees:** The Contractor shall give all notices and pay all fees required to be given or paid under any Central or State statute, ordinance or other law or any regulation or bye-law of any local or other duly constituted authority in relation to the execution of this contracted work and by the Rules & Regulation of all public bodies whose property or rights are affected or may be affected in any way by the contracted work.
- 5.15 **Patent Right & Royalties:** The Contractor shall be liable and responsible for any claim made against the Company for any infringement of patents through the use or application of patented tools, articles, appliances, structures, materials, devices, applications, methods, ways, processes or any other use of such patent in the performance of the Work or by the use of any process or method connected with the Work or by the use of any materials used upon the Work, except to the extent that a claim results from the Contractor's use of a material or product specifically required by the Company in the Specifications. The Contractor shall save harmless and indemnify the Company from and against all costs, expenses and damages (including reasonable legal expenses), which any of them shall incur or be obligated to pay, by reason of any such infringement or claim of infringement, and shall, at the election of the Company, defend at the Contractor's sole expense, all such claims in connection with any alleged infringement.
- 5.16 **Interference With Traffic & Adjoining Properties:** All operations necessary for the execution of this contracted work shall so far as in compliance with the requirements of the contract permits, be carried out so as not to interfere unnecessarily or improperly with the public or private convenience or the access to use and occupation of public or private roads and foot-paths or to the properties whether in the possession of the Employer or any other person and the Contractor shall save harmless and indemnify the employer in respect of all claims, damages proceedings damages, cost, charges and expenses whatsoever arising out of or in relation to any such matter.

- 5.17 **Facilities for other Contractors:** The Contractor shall in accordance with the requirements of the Engineer afford all reasonable facilities to any other Contractors employed by the Employer and their workmen and for the workmen of the Employer and of any other properly authorised authorities or statutory bodies who may be employed in the execution on or near the site of any work not included in the Contract scope or any contract which the Employer may enter into in connection with or ancillary to this contracted work.
- 5.18 **Force Majeure:** If, at any time, during the currency of this contract, the performance in whole or in part, by either party, of any obligation under this contract, shall be prevented or delayed by reasons of war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods explosions, epidemic, quarantine restrictions, Acts of State or other Acts of God, hereinafter referred to as eventualities, then, provided notice of the happenings of any such eventuality is given by either party to the other, within 15 days from the date of occurrence thereof, neither party shall by reason of such eventuality be entitled to terminate this contract, nor shall either party have any claim for damages against the other, in respect of such non-performance or delay in performance and work under this contract shall resume as soon as practicable after such eventuality has come to an end or ceased to exist and the decision of the Employer as to whether the work has to be resumed shall be final and conclusive.
- Should one or both parties be prevented from fulfilling their contractual obligations by a state of *force - majeure* lasting continuously for a period of at least three months, the two parties should consult each other regarding further implementation of the contract, provided always, that if no mutually satisfactory arrangement is arrived at, within a period of a month, from the expiry of three months referred to above, the contract shall be deemed to have expired at the end of the said 4th month referred to above, in which event the liability under the contract shall be settled taking into consideration the work carried out by the Contractor upto the expiry date without prejudice to the rights of Employer arising prior to the expiry date.
- If there are any Judicial Pronouncement/Statutory notifications/orders, the employer reserves to himself the right to withdraw partly or fully any item/items of work as required for compliance of such orders without any financial claim on this account by the other party.
- 5.19 **Foreclosure of Contract:** The employer shall have the right to foreclose the contract for whatever reasons by giving three months notice on the Contractor without any claim of damages by the Contractor.
- 5.20 **Supply of Materials etc.:** Except where otherwise specified, the Contractor shall, at his own expense, supply and provide all the consumables/materials required for satisfactory execution of the job as per scope of work. If the Employer has undertaken to supply materials specified in the Special Condition of Contract or otherwise at terms stated therein, the Contractor shall keep himself in touch with the day-to-day position regarding the supply of materials from the Engineer and shall so adjust the progress of the work that his labour may not remain idle nor may there be any other claim due to or arising from delay in obtaining the materials. No claim whatsoever shall be entertained by the Employer on Account of Delay in supplying materials or in the event of its inability to such supply at all.

6.0 **LABOUR:**

6.1 **Compliance with Labour Statutes:** The Contractor shall comply with all the obligations under the Contract Labour (Regulation and Abolition) Act, the Minimum Wages Act, the Payment of Wages Act, the Employees' Provident Funds and Miscellaneous Act, the Payment of Gratuity Act, the Industrial Disputes Act, the Maternity Benefit Act, the Employees' State Insurance Act, the Employees Compensation Act, and all other labour statutes for the time being in force, and applicable to the Works. The Contractor agrees to keep the Principal Employer / Company indemnified at all times against any demands from the labour or statutory authorities on this account.

6.1.1 **Contract Labour (Regulation & Abolition) Act, 1970:** The Contractor is required to produce license as enjoined in the Contract Labour (Regulation and Abolition) Act, 1970, if the Act is applicable to him. The contractor shall obtain License from the appropriate Licensing Officer of the area before commencement of the work and shall produce a copy thereof of the work along with the original to the Engineer immediately on start of the work. The original will be returned to the contractor after verification. He shall not be allowed to undertake or execute any work through contract labour except under, and in accordance with, a License issued under the said Act in that behalf by the authorised Licensing Officer.

The Contractor shall thoroughly familiarise himself with the provisions of the Contract (Regulation and Abolition) Labour Act, 1970 and the Rules thereunder, and submit a certificate to the Engineer of the Work indicating whether the provisions of the said Act and Rules are applicable to him. In case the said Act and Rules are applicable, the contractor shall take all steps to comply with their provisions, maintain records and registers as required, submit reports and returns to the prescribed authorities periodically as required, issue employment cards / service certificates and display notice in accordance with Contract Labour Rules, with copies thereof to the Company.

The contractor shall pay wages to his labour in a manner laid down in Contract Labour Rules, in the presence of the Engineer (Principal Employer), or his authorised representative. He shall at least pay the minimum wages applicable under the Minimum Wages Act. The Contractor shall notify to the Engineer the date and place of payment of wages to the Engineer, who shall nominate a representative to witness the payment. The Contractor shall also submit to the Engineer a copy of the Wage Payment Sheets which have been receipted by the contract labour, and counter-signed by the representative of the Engineer.

By virtue of default of the Contractor, or otherwise, if the Company is obliged to provide amenities and / or pay wages to labour employed by the Contractor directly, or through Sub-Contractor(s) under this Contract, then the contractor shall indemnify the Company fully, and the Company shall be entitled to recover from the Contractor the expenditure incurred on providing the said amenities, and / or the wages so paid by deducting it from the Security Deposit or from any sum payable by the Company to the Contractor, either under this or under any other Contract.

Provided that if any dispute arises as to expenditure incurred by the Company on provisions of the said amenities, the decisions of the Engineer thereof shall be final and binding.

- 6.1.2 **Standing Orders:** The Contractor shall make his own Standing Orders for the employees engaged by him and get the same approved through the concerned Regional Labour Commissioner or other appropriate Authority and implement the same in conformity with provisions of Industrial Employment Standing Orders Act. In absence of such Standing Order, the Model Standing Orders shall be implemented.
- 6.1.3 **Payment of Wages Act:** The Contractor shall comply with the provisions of the Payment of Wages Act, 1936 and the Rules thereunder in respect of all persons employed by him in carrying out this contract. Any dispute regarding the statutory payment which may arise shall be immediately settled by the Contractor with his Workmen.
- 6.1.4 **Minimum Wages Act:** The Contractor shall comply with the provisions of the Minimum Wages Act 1948 and the Rules made thereunder by the Central Govt. in respect of all employees employed by him in carrying out this contract. He shall pay the employees, wages not less than the Minimum Rate of Wages, as notified by the appropriate Govt. from time to time. The Contractor shall make all payments to the labourers in the presence of authorised representatives of the Employer. The Contractor shall also submit to Engineer copies of wages payment sheets in proof of having paid wages to various labourer with due counter signature by the representative of the Employer.

The Contractor shall at all times indemnify the Employer against all claims arising out of provisions of the Minimum Wages Act and the rules framed thereunder as admissible in respect of any workman employed by the Contractor in carrying out the contract and against costs and expenses incurred by the Employer in connection with and without prejudice to other means of recovery. The Employer shall be entitled to deduct, from any money which is due to or which shall become due to the Contractor whether under this contract or any other contract, all money paid or payable by the Employer, by way of wages and other dues (including compensations, penalty, if any) imposed for committing breach of any provision of the Act by the Contractor in connection with any claim thereto and the Contractor shall abide by the decision of the Employer as to the sum payable by the Contractor under the provisions of this clause.

- 6.1.5 **Medical Facilities:** Contractor must ensure full medical coverage under ESI Scheme, wherever statutorily required to do so, or provide medical facilities, where coverage under ESI Scheme is not mandated or is not available. He must take out insurance coverage of the contract labour for liability under ESI Scheme, and other statutory sickness or accident benefit scheme, and provide the Engineer with copies of documentary evidence of the same.
- 6.1.6 **Inspection and Investigations:** The Contractor's establishment will be subject to inspection, investigations etc. by Engineer or such other Representative of the Employer as duly authorized on behalf of him assuring proper and faithful compliance of the provisions of this contract by the Contractor particularly with regard to the implementations of Labour Laws and other matters anticipated herein. The Contractor shall abide by the decisions and orders of the Engineer with regard to any such matter and furnish, if required, necessary compliance report within the stipulated time.
- 7.0 **Obligation of the Contractor regarding Observance of Various Statutes:** The Contractor shall, at his own cost observe, perform and comply with the provisions of

all statutory enactments, rules, regulations and bye-laws framed thereunder as are applicable for control / operation / regulation, during the execution of work and shall maintain such registers, documents, records etc., as are required under the various statutes, for production of the same before the Employer and / or other statutory authorities prescribed in this behalf, as and when required. Non-compliance of the provisions / stipulations of these Acts / Rules will render the Contractor liable to payment of necessary compensation / penalty, as deemed fit by the Employer / Statutory authorities. It will be the sole responsibility of the Contractor to ensure all kinds of statutory payments to his workers and submission of returns etc., to various statutory authorities in time.

In case of Contractor's default in making statutory payment in time, the Employer reserves the right to deduct necessary amount from the Contractor's bills towards such payments.

The contractor shall be fully responsible to comply with all applicable statutory obligations as employer, e.g., all contributions under P.F. and Pension Scheme (EPF) etc. under the Employees' Provident Fund and Misc. Provision Act, 1952, Employees' Deposit Linked Insurance (EDLI), Employees' State Insurance Act, 1948, benefits under the Maternity Benefit Act, 1961, payment under Payment of Gratuity Act, Payment of Bonus Act, Industrial Disputes Act, etc., and all other such obligations / liabilities in respect of their labour engaged by them for the job undertaken under the contract as per applicable statutory provisions/law and Government Notifications, and will take full liability on this account. The company will not take any financial liability on this account. In the event of failure of the contractor to comply with the above, the company shall be entitled to recover the amount by deduction from any amount payable to the contractor under the contract, including security deposit, or as debt payable by the contractor.

8.0 WORK MATERIALS & PLANT:

8.1 Removal of improper work, equipment & materials: The Engineer shall during the progress of work, have power to order in writing from time to time the following:

- a) The removal from site within such time or times as may be specified in the order, of any material / equipment which in the opinion of Engineer are not in accordance with the contract.
- b) The substitution of suitable equipment and / or materials.
- c) The removal and proper re-execution, notwithstanding any interim payment there against, of any work which, in the opinion of the Engineer, is not in accordance with the contract.

8.2 Default of Contractor in compliance: In case of default on the part of the Contractor in carrying out such order, the Employer shall be entitled to employ and pay other persons, to carry out the same and all expenses consequent thereon or incidental thereto shall be borne by the Contractor and shall be recoverable from him by the Employer or may be deducted by the Employer from any money due or which may become due to the Contractor.

8.3 Suspension of work: The Contractor shall on the written order of the Engineer suspend the progress of the work or any parts thereof for such time and in such manner as the Engineer may consider necessary and shall during such suspension, properly protect and secure the work as is necessary in the opinion of the Engineer. If

the progress of the works or any part thereof is suspended on the written order of the Engineer for more than ninety days, the Contractor may serve a written notice on the Employer requiring permission to resume the suspended work with a further period of 30 days from the date such Notice is received by the Employer. If such permission is not granted within that time the Contractor, by a further written notice to serve may elect to treat the suspension as termination of the contract, without any financial repercussions to either the Employer or to the Contractor.

- 8.4 **Free Access:** The Employer and / or Engineer and any person authorized by them shall at all times have access to the works at site and the Contractor shall afford every facility for and every assistance to, in obtaining the right to such access.

9.0 **COMMENCEMENT TIME & DELAYS:**

- 9.1 **Commencement of Work:** The date of effect of the commencement of the contract shall be reckoned from the date as specified in the Work Order or the date of taking possession of site, whichever is earlier, after deposit of ISD.

- 9.2 **Possession of site:** Save in so far as the contract may prescribe the extent of portions of the site of which the Contractor is to be given possession from time to time and the order in which portions shall be made available to him and subject to any requirement in the contract as to the order in which the works shall be executed, the Employer will, with the Engineer's written order to commence the work, give to the Contractor, possession of so much of the site as may be required to enable the Contractor to commence and proceed with the work in accordance with such reasonable proposals of the Contractor as he shall by notice in writing to the Engineer make and will from time to time as the work proceeds give to the Contractor possession of such further portions of the site as may be required to enable the Contractor to proceed with the work with due despatch in accordance with the said proposals.

- 9.2.2 In case the Contractor delays to take possession of the site within the time specified in such written order / information / instruction from the Employer or his representative, and the delay subsequently results in further delay / complications, for extension of contract the sole responsibility of such delay / complications shall be resting with the Contractor.

- 9.2.3 Without prejudice to the right of the Employer and without in any manner affecting the duties of the Contractor, if in the opinion of the Engineer, the Contractor has failed or is likely to fail to carry out any part of the work and such failure or apprehended failure might result in incurring of any loss or damage to the Company, then the Engineer may cause any part of the work to be carried out departmentally or through other agencies and all expenses incurred by Employer in excess over the contract rate shall be recoverable from ad-hoc / monthly / fortnightly 'on-account' bills of the Contractor. The decision of the Engineer in regard to the exercise of this provision as well as to the recovery of additional expenses incurred by the company is final and binding on the Contractor. Once Contractor takes possession of the site as per written order of the Employer, the responsibility of Security and Protection of the site from any complication shall be the sole responsibility of the Contractor.

- 9.3 **Compliance with Statutes:** The Contractor shall at his own cost, observe, perform and comply with the provisions of the Acts applicable during the execution of the contract, and Rules / Bye-laws framed thereunder including but not limiting to the following and shall maintain such registers and documents, as are required under the various statutes, for production of the same before the company and/or other

Statutory Authorities prescribed in this behalf, as and when required. The contractor agrees to keep the Employer indemnified at all times against any demands / penalties by statutory authorities, and shall defray to the Employer any costs / expenses incurred by the Employer in proceedings before the statutory authorities. A list of the relevant laws applicable to the process of execution of work under the contract is given below. The list is illustrative and not exhaustive.

- i) The Contract Labour (Regulation & Abolition) Act, 1970 and Rules framed thereunder.
- ii) The Payment of Wages Act, 1936
- iii) The Employees' Provident Fund Act, 1952 & Schemes framed thereunder.
- iv) The Maternity Benefit Act, 1961.
- v) The Payment of Bonus Act, 1965.
- vi) The Industrial Disputes Act, 1947.
- x) The Employees Compensation Act, 1923.
- xi) The Minimum Wages Act, 1948.
- xii) The Payment of Gratuity Act, as and when applicable.

9.4 **Waiver:** The non-enforcement of any of the Terms and Conditions of the contract strictly by any party to the Contract would not amount to waiver of that term in favour of the other party.

10.0 **REMEDIES AND POWERS:**

10.1 **Anticipatory Breach and Termination; Risk and Cost:** If the contractor shall neglect to execute the work with due diligence and expedition, or shall refuse or neglect to comply with any reasonable orders given him in writing by the Engineer in connexion with the work or shall contravene any provision of the contract, the Company / Employer may give seven (7) days' notice in writing, to the contractor, to make good the failure, neglect, or contravention complained of. If the contractor shall fail to comply with the notice within the stipulated period from the date of service thereof in the case of a failure, neglect, or contravention capable of being made good within that time, then and in such case the Employer shall be at liberty to employ other workmen, and forthwith perform such work as the contractor may have neglected to do.

If the Employer shall think fit, it shall be lawful for him to take the work wholly, or in part, out of the contractor's hands and give it to another person on contract at a reasonable price or provide any other material, tools tackle or labour for the purpose of completing the work, or any part thereof, and in that event the Employer shall without being responsible to the contractor for fair wear and tear of the same, have the free use of all the materials, tools, tackle, or other things which may be on the site, for use at any time in connection with the work to the exclusion of any right of the contractor over the same. The Employer shall be entitled to retain and apply any balance, which may be otherwise due on the contract by him to the payment of the cost of executing such work as aforesaid, and shall be entitled to make a claim for the balance amount, in accordance with law.

10.2 **Bankruptcy and Breach:** If the Contractor shall become bankrupt or have an order for appointment of any receiver made against him or shall present any position in bankruptcy or shall make an arrangement with /or assignment in favour of his creditors or shall agree to carry out the contract under committee of inspection of his creditors or being a corporation shall go into liquidation (other than voluntary

liquidation, for the purpose of amalgamation, absorption or reconstruction) or if the Contractor shall assign the contract without the prior consent in writing of the Employer, or shall have an execution levied on his goods, or if the Engineer shall certify in writing to the Employer that in his opinion, the Contractor:

- a) has abandoned the contract or
- b) without reasonable excuse has failed to commence the work or has suspended the progress of the works for 7 days after receiving from the Engineer written notice to proceed or,
- c) is not executing the works in accordance with the contract or is persistently or flagrantly neglecting to carry out his obligations under the contract or,
- d) has to the detriment of good workmanship or in defiance of the Engineer's instructions to the contrary sublet any part of the contract or,
- e) otherwise failed to perform his part of the contract according to the true intent and meaning thereof.

Then the Employer may after giving 7 days notice in writing to the Contractor, enter upon the site and expel the Contractor therefrom, without thereby avoiding the Contractor or releasing the Contractor from any of his obligations or liabilities under the contract or affecting the rights and powers conferred on the Employer or the Engineer under the contract or otherwise available under the law, may appoint any other Contractor to complete the work at the cost and risk of the Contractor. However on happening of any eventualities as per above sub clause (a) to (e) the Employer shall be at discretion to terminate the contract by giving 7 days notice and the contract shall stand/ terminated w.e.f. the 8th day from the date of issue of this notice. In any of the eventualities mentioned above in a) to e), the employer shall have the right to take possession of the plants and machineries of the contractor and realise the dues by sale of the said plants and machineries.

10.2.1 Valuation in case of forfeiture: The Engineer shall as soon as practicable after any such entry and expulsion by the Employer fix and determine such investigation or enquiries as he may think fit to or institute and shall certify what amount (if any) at the time of such entry and expulsion been reasonably earned by or would reasonably accrue to the Contractor in respect of work actually done by him under the contract.

10.2.2 Payment after forfeiture: If the Employer shall enter & expel the Contractor under this clause, he shall not be liable to pay to the Contractor any money on account of contract until the expiry of the period of contract and thereafter until the costs of completion and damages and all other expenses incurred by the Employer have been ascertained. The Contractor shall then be entitled to receive only such sums(if any) as the Engineer may certify to be due to him upon the completion by him after deducting the said amount payable to Employer. But if such amounts shall exceed the sum which would have been payable to the Contractor on the completion by him then the Contractor shall upon demand pay to the Employer the such excess amount and it shall be deemed a debt due by the Contractor to the Employer and shall be recoverable accordingly.

10.3 Illegal gratification, breach of contract: The contract may also be terminated and the Contractor shall be liable to make good any loss or damage resulting from such cancellation (specified under clause 10.1), if any bribe gratuity, gift, loan reward or advantage pecuniary or otherwise shall either directly or indirectly be given, promised

or offered by the Contractor or any of his servants or agents to any person employed by the Employer in any way relating to his office or employment or if any such person shall become in any way directly or indirectly interested in the contract or if the Contractor has committed a breach of any of the terms of the contract and in particular minimum wages clause and labour regulations.

- 10.3.1 **Retention of Dues:** The Employer will have full liberty to retain and set off all sums due or to become due to the Contractor (including security deposit) whether under this contract or under any other transaction or claim whatsoever, against any sum due or to become due to the Employer under this contract or any other transaction or claim whatsoever.

11.0 **PAYMENT TERMS:**

- 11.1 Subject to any deduction that may have to be made in accordance with the terms and conditions of this contract, the Contractor shall be paid on-account bills on monthly basis for the work done during the previous month.
- 11.2 For the purpose of such monthly payments, invoices preferably in their printed forms alongwith the documentary proof for having deposited the Contractors' permanent employees and his labourers' contribution towards PF and pension with his jurisdictional RPF Commissioner, alongwith the certificate from Engineer's representative for provision of safety equipments to all his workers, and also proof of payment of wages to his workmen in presence of the authorised representative of the Employer shall be prepared and submitted by the Contractor for the work done during the previous month within seven days from the expiry of the previous month.
- 11.3 Payments against on-account bills shall be released through a crossed Account Payee cheque within 30 days from the date of submission of clear invoices and PF documents and others as in clause 11.2 above by the Contractor. For this purpose the contractor should give the details of the name of the Bank, Branch & Account No. before submission of the first R.A. bills. Final bill will be paid within 60 days on completion of all formalities as per the Terms & Conditions of the Contract.
- 11.4 Payment shall be regulated as per the rates mentioned in the **"Schedule of work/Rateformat"**
- 11.5 Deduction of applicable taxes will be made from the invoice and TDS certificate will be issued by Finance & Accounts Department for such deductions.
- 11.6 **Approval of Work:** No certificate other than the final certificate referred to in clause 11.8 hereof shall be deemed to constitute approval of any work or other matter in respect of performance of the contract or any part thereof or on the accuracy of any claim made by the Contractor on additional or various work having been ordered by the Engineer nor shall any other certificate conclude or prejudice any of the power of Engineer.
- 11.7 **Final Certificate:** The contract shall not be considered as completed until a Final Certificate have been signed and issued to the Contractor by the Employer stating that the works have been completed in accordance with the terms of the contract.
- 11.8 **Refund of Security Deposit:** The security deposit recovered from the on-account-bill including the Initial Security Deposit, shall be refunded on completion of work satisfactorily in terms of this contract and payment of final bill. Such refunds shall not be unduly delayed and shall be paid by the Employer within 60 days from the date of

payment of final bill subject to production of No Dues Certificate by the Contractor from Mine Manager and /or statutory authorities.

12.0 **NOTICE:**

12.1 **Service of notice on Contractor:** Any notice given to the Contractor under the terms of the contract shall be served by the Engineer or his representative by registered post / courier to, or leaving the same, at the Contractor's notified address or at its Registered Office or at the Contractor's site office.

12.2 **Service of notice of Employer:** Any notice to be given to the Employer under the terms of contract shall be served by sending the same by registered post / courier at the office of Employer at site or Head Office of the Raw Materials Division at Kolkata.

12.3 **Change of Address:** Any change of address of the Contractor shall immediately be notified to the Engineer.

13.0 **MISCELLANEOUS:**

13.1 **Work in or around the Office Premises:** Progress of work in certain areas might have to be expedited as required by the Employer and the Contractor must take this factor into consideration when working out his rates.

13.2 **Use of Intoxicants:** The Contractor shall prohibit the sale, possession, use and of sales of ardent spirits or other intoxicating beverage upon the work or in any of the boardings, houses encampments or other tenements owned, occupied by or within the control of the Contractor or any of his employees. Any Contractor or Sub-contractor personnel determined by the Company, in its sole discretion, to be in violation of the ban against narcotics, drugs and intoxicants, will be prohibited from working on the Contract.

13.3 **Safety:**

13.3.1 The Contractor will be responsible to ensure safety of the workmen under them.

13.3.2 Except in special circumstances (to be recorded in writing and with due approval) the contractor will not be allowed to employ subcontractor/petty contractors.

13.3.3 All hazardous and serious jobs must be performed after safety protocol is signed by all the concerned agencies and taking all safety measures.

13.4 Every contractor must maintain statutory registers as per relevant Rules, Regulations etc.

13.5 The contractor shall ensure that no workman is deployed on work without getting a basic safety awareness.

For violation of Safety Rules etc., following would be the penalties imposed on the contractor:

Sl. No.	Description of Violation	Penalty
1.	Occasional violation of safety rules.	Rs. 2,000/-
2.	Fatal accident per case	Rs. 1,00,000/- or 20% of contract value whichever is lower.

The penalty shall be decided after investigation and obtaining the report from Engineer. The penalty as decided by Engineer or his authorised representative will be deducted from the RA bill with information to the contractor. Record of such penalties imposed also should be maintained by safety department.

- 13.6 **Policing of the Work:** Should the general conduct of the works including the Premises of the Employer under occupation of the Contractor lead to violation of any of the provisions of the Indian Penal Code either in consequence of riotous or illegal proceedings of the Contractor's labour or supervising staff or others to such an extent as to necessitate the deployment of Special police or Magistrate the cost of such extra forces is to defrayed by the Contractor and not by the Employer.
- 13.7 **Signature of receipts for amount:** Every receipt for money which may become payable, or for any deposit which may become transferable, notwithstanding the contrary contained in the partnership deed, if in the name of partnership, signature on receipt by any one of the partners of a Contractor firm be good and sufficient to the Employer in respect of the money, and in the event of death of any of the Contractor partners during the currency of the contract, it is hereby expressly agreed that every receipt by any one of the surviving Contractor-partners shall, if so signed as aforesaid, be a good and valid discharge, as aforesaid, provided that nothing in this clause shall be deemed to prejudice or affect any claim which the Employer may hereafter have against the legal representative of any deceased Contractor-partner for or in respect or any breach of any of the conditions of contract, and provided also that nothing in this clause shall be deemed to prejudice or affect the respective rights or obligations of the Contractor-partners and of the legal representatives of any deceased Contractor-partner's interest.
- 13.8 **Law in Force in Relation to Contract:** The contract or amendments thereof entered into between the Employer and the Contractor under the contract shall be governed and regulated by the relevant laws for the time being in force in the territory of India relating to contracts.
- 13.9 **Change in Constitution of Firm:** If the Contractor is a partnership firm the contractual relationship shall be deemed to have terminated if there is any change in the constitution of the firm, whether by retirement, introduction of new partners or otherwise, unless such change has the previous written approval of the Employer, notwithstanding that the Employer may have other dealings with such reconstituted firm. In the event of death of one of the partners, the Contractor shall immediately inform the Employer, giving necessary particulars of the heirs and legal representatives of the deceased partner, and it shall be the option of the Employer either to continue the contractual relationship with the said reconstituted firm, or to treat the Contract as having being terminated by such supervening events, and the decision of the Employer in this regard will be binding on all the partners concerned. No claim for compensation / damages on premature termination will be made or sustainable against the Employer on account of such termination.
- 13.10 The Contractor shall make his own arrangements for transporting equipment required by him obtained prior permission for bringing into office premises or carrying / removing from the office premises of such equipment. No such permission for removing / carrying of any equipment by the contractor from the office premises shall be granted unless he has cleared his outstanding to the employer nor shall he be entitled to any compensation on this account.

- 13.11 The Contractor shall not allow any visitor on the work sites, without the prior permission of the Engineer.
- 13.12 Order on one or more than one parties will be placed on the basis of L-1 quotation and, if required, negotiation will be held with L-1 tenderer only. However, all the tenderers may be required to explain / justify the basis of their quoted price as and when asked for. In case, any tenderer fails to justify his quoted price or refuses to co-operate in this regard, they will not be considered for participating in the retendering if order / contract is not finalised from the present tender.
- 13.13 If a tenderer quotes unworkable rates and is considered for placement of order, the party will be asked to justify the rate quoted and will have to give a Performance Guarantee Bond (in addition to the Security Deposit) in prescribed format in the form of Bank Draft/ Bank Guarantee. The amount of Performance Guarantee Bond will be decided by SAIL/CCSO at the time of placement of order. Earnest money of the tenderers who refuse to give Performance Guarantee Bond will be forfeited and they will not be considered in re-tendering if order/ contract is not finalised from the present tender.

14.0 **ARBITRATION:**

- 14.1 **Reference of Disputes to Conciliation / Arbitration:** All disputes or differences arising out of the contract, except disputes or differences for which separate provisions for their resolution have been made in the Contract ('excepted matters'), shall be settled by Conciliation or Arbitration in accordance with the Arbitration and Conciliation Act, 1996, and the provisions made hereinafter in this Article. Such dispute shall first be referred to Conciliation by a Conciliator selected mutually by the parties, who shall also decide the fees / remuneration and the rules of Procedure, which shall be flexible.
- 14.2 **Appointment of Arbitrator:** In the event of failure of conciliation, that dispute will be referred to an arbitral tribunal comprising a sole arbitrator to be appointed by the Head of the Department (HOD), SAIL/CCSO, Dhanbad.

When a party sends a Notice for Arbitration to the said authority, within a period of thirty days, a panel of three names suggested by the said authority, will be forwarded to the party demanding arbitration. The party shall choose one of those persons, who will be appointed as the Sole Arbitrator.

In the event the party fails to intimate one of those persons within fifteen days from the date of intimation of the three names then said authority will be at liberty to appoint any one out of the said three persons as the Sole Arbitrator.

The Arbitrator(s) shall hear the cases independently and impartially and shall not represent the interest of any party. The Arbitrator shall, from the time of his appointment and throughout the arbitral proceedings and without delay, disclose to the parties in writing any circumstances likely to give rise to justifiable doubts as to his independence or impartiality. However, merely because he is or has been an employed by one of the parties, it shall not be a disqualification for a person to be an arbitrator.

- 14.3 The arbitral tribunal shall be free to determine its own rules of procedure, in consultation with the parties, which it shall state at the beginning of the arbitral proceedings, and shall follow such procedure thereafter. The arbitrator may hold preparatory meetings(s) for this purpose. In the preparatory meeting(s) aforesaid, the

arbitrator(s) may, in consultation with the parties, also determine the manner of taking evidence, the summoning of expert evidence, and all such matters for the expeditious disposal of the arbitration proceedings. The arbitrator shall be entitled to actually incurred expenses only, in respect of preparatory meetings(s). The seat of the arbitral tribunal shall be at Dhanbad, but, if necessary, the tribunal can hold the proceedings at other places, for convenience in recording evidence, conducting investigation / survey.

- 14.4 **Work to continue during Conciliation / Arbitration:** Work under the Contract shall be continued by the Contractor during the arbitration proceedings and recourse to arbitration shall not be a bar to continuance for the work.

15.0 **AMENDMENT:**

Except to the extent expressly set forth in the Contract, no change in or modification, termination or discharge of this Contract, in any form whatsoever, shall be valid or enforceable unless it is in writing on stamp paper of requisite value, and signed by the party to be charged therewith or its duly, authorized representative.

- 16.0 It shall be the responsibility of the persons submitting the tender to ensure that the tenders have been submitted in the formats and as per the terms and conditions prescribed in the SAIL Website and no change is made therein before submission of their tender. In the event of any doubt regarding the terms and conditions/ formats, the person concerned may seek clarifications from the authorised officer of SAIL. In case any tampering/unauthorised alteration is noticed in the tender submitted from the Tender Document available on the SAIL Website the said tender shall be summarily rejected and the company shall have no liability whatsoever on the matter. However, deviation if any proposed by the tenderer may be separately indicated for acceptance or otherwise of SAIL. Such proposed deviation will not be treated as tampering for the purpose of application of this clause.

17.0 **JURISDICTION:**

The District Court at Dhanbad shall have the exclusive jurisdiction upon any matter arising out of this contract.

MANDATE FORM FOR RECEIVING OF PAYMENT IN ELECTRONIC MODE

1	PARTICULARS OF EMPLOYEE/ VENDOR / SUPPLIER/ CONTRACTOR / INVESTOR/ CUSTOMER /OTHER (Please specify)	
A	NAME OF TENDERER	
B	ADDRESS	
C	E.MAIL	
2	PARTICULARS OF BANK ACCOUNT	
A	BANK NAME	
B	BRANCH NAME	
C	ACCOUNT NUMBER (Full) (As required for electronic payment/ EFT / RTGS / SEFT)	
D	BANK ADDRESS WITH TELEPHONE NO.	
E	BRANCH CODE, if any	
F	9-DIGIT CODE NUMBER OF THE BANK & BRANCH, WHEREVER AVAILABLE (Appearing on the MICRCHEQUE issued by the bank) (Enclose a copy of cancelled cheque)	
G	ACCOUNT TYPE (S.B. Account/ Current A/C or Cash Credit)	
H	LEDGER NO/ LEDGER FOLIO NO.	
I	IFSC CODE FOR NEFT	
J	IFSC CODE FOR RTGS	

I hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold SAIL responsible. I have read the option, invitation letter and agree to discharge responsibility expected of me as a participant under the Scheme.

Signature of the Investor / Customer / Employee/
Tenderer/Vendor/ Supplier/ Contractor, with seal of the firm

Date:

Name and Address:

Certified that the particulars furnished above are correct as per our records

Signature of the Authorized official from the Bank



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

CENTRAL COAL SUPPLY ORGANISATION
P.O:SARAIIDHELA,DHANBAD

Techno-Commercial Bid
AGREEMENT

To,

The General Manager (Coal, IT/Contract),
SAIL/CCSO, SARAIIDHELA
DHANBAD- 828127.

Ref : Tender Notice No: SAIL/CCSO/Pump Operation & Water Supply/OTE/2022-23/2
Date : 29.08.2022

Dear Sir,

I/we hereby declare that I/we have submitted tender as specified in your above quoted tender with specifications laid down in tender document consisting of Instructions to tenderers, Techno-Commercial (Part-I), Special Conditions of Contract and General Conditions of Contract and declare that, should this tender be accepted, I/we hereby agree to abide by and fulfill all the terms and conditions of the tender which have been read and understood by me/us.

We, in due consideration of all the above, offer our rate as firm covering all expenses/statutory norms in the schedule of work but exclusive of GST as required under GST laws provided in the tender document.

Signature of the tenderer

With Rubber stamp & Address

DECLARATION -II

Bid-Securing Declaration

(In lieu of EMD)

NIT Ref: Tender Notice No: SAIL/CCSO/Pump Operation & Water Supply /OTE/2022-23/2
Date :29.08.2022

To,
The General Manager (Coal, IT & Contract),
CCSO, SAIL, Dhanbad

I/We*, the undersigned, declare that:

I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be suspended for the period of one year from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Signature:
(Signature of person whose name and capacity are shown)

In the capacity of:.....
(Legal capacity of person signing the Bid Securing Declaration)

Name:.....
(Complete name of person signing the Bid Securing Declaration)

Duly authorized to sign the bid for and on behalf of:.....
(Complete name of Bidder)

Dated on day of,
(Date of signing)

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]

Schedule of Rate – Part II
Price Bid Format

SL. No.	Description of Work	Frequency of work	Rate per month (excluding GST)
1.	Pump Operation & Water Supply in residential quarters & Offices	As indicated in description of work	Rs. (in Fig) ----- Rs. (in words) ----- ----- -----

Total Quoted Rate =Rs. -----(in fig)

Rs. -----

----- (in words)

Rate to be quoted on Firm PRICE basis which includes all statutory expenses, but excluding GST. GST at applicable rate shall be paid against submission of GST complaint Invoice. The contractor has to ensure all the statutory compliances as required under GST laws for enabling SAIL/CCSO to avail Input Tax Credit on payment of said GST.

Signature of Tenderer with Seal

Date :

Name :

Address :